

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Filip Woroniecki	Team: Squad #7	CCRB Case #: 201609530	☐ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☒ O.L.	☐ Injury
Incident Date(s) Saturday, 11/05/2016 11:25 PM	Location of Incident: East 96th Street and Avenue K	Precinct: 69	18 Mo. SOL 5/5/2018	EO SOL 5/5/2018	
Date/Time CV Reported Wed, 11/09/2016 11:55 AM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Wed, 11/16/2016 12:51 PM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. SGT Daniel Guida	5358	941862	069 PCT
2. Officers			Unknown

Officer(s)	Allegation	Investigator Recommendation
A.SGT Daniel Guida	Abuse: Sergeant Daniel Guida stopped the vehicle in which § 87(2)(b) and § 87(2)(b) were occupants.	
B. Officers	Abuse: Officers stopped the vehicle in which § 87(2)(b) and § 87(2)(b) were occupants.	
C.SGT Daniel Guida	Discourtesy: Sergeant Daniel Guida spoke discourteously to § 87(2)(b)	
D.SGT Daniel Guida	Off. Language: Sergeant Daniel Guida made remarks to § 87(2)(b) based upon race.	
E. Officers	Abuse: Officers searched the vehicle in which § 87(2)(b) and § 87(2)(b) were occupants.	

Case Summary

On November 9, 2016, § 87(2)(b) filed a complaint with IAB via phone, on behalf of himself and his girlfriend, § 87(2)(b). The complaint generated original log number 16-39691, and was received at the CCRB on November 16, 2016.

On November 21, 2016, contact with § 87(2)(b) was established via phone. § 87(2)(b) confirmed his identity and provided contact information for § 87(2)(b) who was listed as a victim in this complaint. § 87(2)(b) was scheduled for an interview at the CCRB on November 23, 2016. § 87(2)(b) did not appear to his appointment, and did not contact the CCRB in advance to cancel or reschedule. A missed appointment letter was mailed to § 87(2)(b) on November 23, 2016. § 87(2)(b) was contacted via phone again on November 30, 2016. He was scheduled for his second appointment at the CCRB on December 6, 2016. § 87(2)(b) once again did not appear to his appointment, and did not contact the CCRB in advance to cancel or reschedule. § 87(2)(b) also received text message reminders for both of his appointments at the CCRB. § 87(2)(b) refused to provide his email address, therefore no email correspondence was sent to him.

Contact with § 87(2)(b) was established on November 23, 2016. § 87(2)(b) confirmed her identity and stated that she could not discuss the complaint at the moment as she was driving. She did not provide an email address and did not provide any additional contact information during the brief phone conversation. Contact with § 87(2)(b) was reestablished on December 1, 2016, and she was scheduled for an interview at the CCRB on December 6, 2016. § 87(2)(b) did not appear to her appointment or call ahead to cancel or reschedule it. Between November 23, 2016 and December 8, 2016, § 87(2)(b) was contacted via phone a total of five times, resulting in two voicemails, two conversations in which she scheduled appointments, and an attempt in which her phone was not accepting voicemails. Between November 25, 2016 and December 6, 2016, two letters were sent to § 87(2)(b) address. No letters were returned by the U.S. Postal Service as undeliverable.

Searches of the Department of Correction for New York City and New York State confirmed that neither § 87(2)(b) nor § 87(2)(b) was incarcerated.

§ 87(2)(g)

Squad: 7

Investigator:	_____	_____	_____
	Signature	Print	Date
Squad Leader:	_____	_____	_____
	Title/Signature	Print	Date
Reviewer:	_____	_____	_____
	Title/Signature	Print	Date

